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2025-2026 Regular Sessions

IN ASSEMBLY

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Introduced by M. of A. PRETLOW, ZINERMAN -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Economic Development in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to the practice of natural hair care and braiding

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The article heading of article 27 of the general business law, as added by chapter 509 of the laws of 1992, is amended to read as follows:

LICENSING OF NAIL SPECIALTY, NATURAL
HAIR [~~STYLING~~] CARE AND BRAIDING,
ESTHETICS AND COSMETOLOGY

§ 2. Subdivisions 3 and 5 of section 400 of the general business law, subdivision 3 as added by chapter 509 of the laws of 1992 and subdivision 5 as amended by chapter 343 of the laws of 1998, are amended to read as follows:

3. "Licensee" means a person licensed pursuant to this article to engage in the practice of natural hair [~~styling~~] care and braiding, esthetics, nail specialty or cosmetology, or to operate an appearance enhancement business in which such practice, as herein defined, is provided to the public.

5. a. The practice of "natural hair [~~styling~~] care and braiding" means providing for a fee, or any consideration or exchange, whether direct or indirect, any of the following services to the hair, the maintenance or the styling of a human [~~being-~~] being's natural hair texture without chemicals that permanently change the pattern of one's hair texture

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 through braiding, locking, weaving, natural hairstyling, textured hair-
2 styling, including, but not limited to, the application of cirrology,
3 with all ranges of hair types and textures with a focus on aesthetic
4 results while prioritizing hair and scalp health, shampooing, condition-
5 ing, providing botanical beauty products which include moisturizing
6 shampoos, leave-in conditioners and hydration conditioning, scalp treat-
7 ments, wellness practices, arranging, dressing, twisting, coiling, wrap-
8 ping, weaving, extending, locking, or braiding the hair or beard by
9 either hand or mechanical [~~appliances~~] equipment.

10 b. Such practice shall not include cutting, shaving or trimming
11 natural hair except [~~that~~] when such activities are [~~permissible to the~~
12 ~~extent that such activities are~~] incidental to the practice of [~~natural~~
13 ~~hair styling~~] natural hair care and braiding services provided for a
14 fee, including minor hair shaping or trimming of naturally textured
15 hair.

16 c. Such practice shall not include the application of dyes, reactive
17 chemicals, or other preparations to alter the color or to straighten,
18 curl, or permanently alter the structure of the hair with chemicals or
19 heat, or weaving or extension techniques that include, but are not
20 limited to, bonding, hair fusion, or tape-ins. [~~Techniques which result~~
21 ~~in tension on hair roots such as certain types of braiding, weaving,~~
22 ~~wrapping, locking and extending of the hair may only be performed by a~~
23 ~~natural hair styling or cosmetology licensee who has successfully~~
24 ~~completed an approved course of study in such techniques.] Such tech-~~
25 ~~niques shall only be performed by cosmetology licensees who have~~
26 ~~successfully completed an approved course of study in such techniques.~~

27 § 3. Section 400 of the general business law is amended by adding
28 eleven new subdivisions 5-a, 5-b, 5-c, 5-d, 5-e, 5-f, 5-g, 5-h, 5-i, 5-j
29 and 5-k to read as follows:

30 5-a. "Natural hair" means all hair types and textures, including, but
31 not limited to, those that grow from the scalp with a natural curl,
32 coil, wave or wiry pattern of the hair.

33 5-b. "Natural hair care" means the maintenance and overall care of
34 natural hair, including natural hairstyling, textured hair and textured
35 hair styling as defined in subdivisions five-c, five-d and five-e of
36 this section, and the health and wellness of one's hair and scalp
37 through proper tension techniques and without the use of chemicals or
38 the alteration of the structure of the hair.

39 5-c. "Natural hairstyling" means the care and maintenance of hair in
40 its organic unaltered state, and the technical mechanical styling of
41 curly, coily, tight coily, Afro-coily, wavy or straight hair textures
42 without the use of chemical processes that permanently change the
43 natural hair or curl pattern.

44 5-d. "Textured hair" means textured hair types, including curly,
45 coily, tight coily, Afro-coily, straight and wavy, including, but not
46 limited to, various curly, coily, wavy or wiry patterns, combinations
47 and configurations, hair strands, thickness, and volumes of hair.

48 5-e. "Textured hair styling" means utilizing techniques to define and
49 enhance all hair types and textures including curly, coily, tight coily,
50 Afro-coily, straight and wavy hair in conjunction with performing the
51 practice of natural hair care and braiding. Such styling shall include
52 the use of blow dryers and diffusers for the purpose of drying natural
53 textured styles with indirect heat.

54 5-f. "Cirrology" means a specialized term used to describe the study
55 or classification of hair textures, defining the geometry and science of
56 different curl, coil, wave, and zig zag patterns and refers to a profes-

1 sional, health-centered discipline with the focus on the holistic
2 support of textured hair.

3 5-g. "Braid" means the interlacing of three or more strands of hair,
4 and can be worn in a variety of styles, including, but not limited to,
5 cornrows, stitch cornrows, locs, box braids, knotless or feed-in braids,
6 casamas, plaits, Bantu knots, or Senegalese twists; with or without
7 added hair fibers traditionally associated with African braids as
8 described in subdivision five-i of this section.

9 5-h. "Braiding" means the styling practices and techniques on all hair
10 types and textures to create a braid as defined in subdivision five-g of
11 this section which includes, but is not limited to, the use of natural
12 human hair or synthetic hair extension fibers or hair added to the base
13 of the braid to elongate a style, natural human hair and synthetic
14 blended fibers, decorative beads, or other hair adornments. Minor hair
15 shaping or trimming of natural hair or hair extensions necessary for
16 finishing braid hair extensions may occur. Braiding types and tech-
17 niques can include, but are not limited to, individual box braids, knot-
18 less or feed-in braids, cornrows, stitch cornrows, casamas, plaits,
19 Bantu knots, or Senegalese twists.

20 5-i. "African braiding" refers to the cultural reference of tradi-
21 tional techniques of naturally braiding and cornrowing hair, originating
22 from African communities within the African diaspora.

23 5-j. "Locking" means performing techniques, including, but not limited
24 to, palm rolling several individual strands of hair into uniformed
25 cylinder formations to bind and create many individual compact strands
26 of hair through grooming techniques, including, but not limited to,
27 twisting, coiling and braiding the hair and/or adding human or synthetic
28 hair to create "loc extensions".

29 5-k. "Weaving" means a method of hair extension and enhancement where
30 human hair or synthetic fibers are added to an individual's natural hair
31 with techniques that extend and/or conceal the natural hair while adding
32 length, volume or texture; and the making of wigs from human hair and
33 synthetic fibers, including the foundational preparation of the hair
34 through wellness practices in order to preserve the health of the hair.

35 § 4. Subdivisions 1 and 3 of section 401 of the general business law,
36 subdivision 1 as amended by chapter 80 of the laws of 2015 and subdivi-
37 sion 3 as amended by chapter 341 of the laws of 1998, are amended to
38 read as follows:

39 1. No person shall engage in the practice of nail specialty, waxing,
40 natural hair [~~styling~~] care and braiding, esthetics or cosmetology, as
41 defined in section four hundred of this article, without having received
42 a license to engage in such practice in the manner prescribed in this
43 article. No person shall act as a trainee or perform any service as such
44 unless [~~he or she~~] such person has obtained a certificate of registra-
45 tion pursuant to this article.

46 3. A person licensed by any other state or country to practice nail
47 specialty, waxing, natural hair [~~styling~~] care and braiding, esthetics
48 or cosmetology shall be allowed to practice in New York state for three
49 months or less within any calendar year for the purpose of giving to, or
50 receiving from, persons who are licensed under this article training in
51 current styles, techniques or materials, provided however, that no such
52 unlicensed person may provide services to the public for any fee, or
53 other compensation, whether direct or indirect.

54 § 5. Section 404 of the general business law, as amended by chapter
55 664 of the laws of 2023, is amended to read as follows:

§ 404. Rules and regulations. The secretary shall promulgate rules and regulations which establish standards for practice and operation by licensees and trainees under this article in order to ensure the health, safety and welfare of the public including licensees and trainees when they are working within such establishments. Such rules and regulations shall include, but not be limited to, the sanitary conditions and procedures required to be maintained, a minimum standard of training appropriate to the duties of nail specialists, trainees, waxers, natural hair ~~[stylists]~~ care and braiding specialists, estheticians, and cosmetologists and the provision of service by nail specialists, trainees, waxers, natural hair ~~[stylists]~~ care and braiding specialists, estheticians or cosmetologists at remote locations other than the licensee's home provided that such practitioner holds an appearance enhancement business license to operate at a fixed location or is employed by the holder of an appearance enhancement business license. Regulations setting forth the educational requirements for nail specialists and trainees shall include education in the area of causes of infection and bacteriology. Regulations setting forth the educational requirements for cosmetologists ~~[or]~~, natural hair ~~[stylists]~~ care and braiding specialists and natural hair care and braiding apprentices shall include education regarding the provision of services to individuals with all hair types and textures, including, but not limited to, various curl, coil or wave patterns, hair strand thicknesses, and volumes of hair. Additionally, such regulations for natural hair care and braiding specialists and natural hair care and braiding apprentices shall include, but is not limited to, education in the area of natural hair care and braiding techniques, cause of infection and bacteriology, alopecia and scalp disorders and diseases, salon health and safety protocols, the science of sanitary practices and ergonomics for overall health and safety. In promulgating such rules and regulations the secretary shall consult with the state education department, the advisory committee established pursuant to this article, any other state agencies and private industry representatives from beauty schools and academies as may be appropriate in determining minimum training requirements.

§ 6. Section 406 of the general business law, as added by chapter 509 of the laws of 1992, subdivisions 1, 2 and 4 as amended by chapter 341 of the laws of 1998, paragraph e of subdivision 1 as amended by chapter 376 of the laws of 2015, paragraph f of subdivision 1 as added by chapter 80 of the laws of 2015, paragraph c of subdivision 2 as amended by section 3 of part D of chapter 328 of the laws of 2014 and paragraph a of subdivision 3 as amended by chapter 324 of the laws of 1998, is amended to read as follows:

§ 406. License application; procedure; requirements; temporary license. 1. a. Any person intending to practice nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology as defined in this article, or to own or operate an appearance enhancement business, shall first make application to the secretary for a license therefor.

b. Such application shall be in a form and manner prescribed by the secretary and shall contain such information as, in the secretary's judgment, is reasonable and necessary to determine the qualifications and fitness for licensing of the applicant.

c. The application shall be subscribed by the applicant and affirmed under penalty of perjury.

d. Each application shall be accompanied by the appropriate fee as prescribed by this article.

1 e. Each application shall be accompanied by a certificate of a duly
2 licensed physician, or nurse practitioner to the extent authorized by
3 law and consistent with subdivision three of section six thousand nine
4 hundred two of the education law on a form prescribed by the secretary,
5 showing freedom from any infectious or communicable disease which
6 certificate shall have been issued within thirty days prior to the date
7 of the filing of the application.

8 f. Notwithstanding the educational requirements of this section, a
9 trainee may obtain a license to practice nail specialty if such trainee
10 provides satisfactory evidence to the secretary that such trainee has
11 been actively engaged in a traineeship for a period of one year and has
12 completed a course of study set forth by the secretary. Such course of
13 study may be delivered by electronic means.

14 2. a. Any person seventeen years of age or older may apply to the
15 secretary for a license to practice nail specialty, waxing, natural hair
16 ~~[styling]~~ care and braiding, esthetics or cosmetology.

17 b. Each such application shall also be accompanied by satisfactory
18 evidence of having taken and passed the appropriate examination or exam-
19 inations offered by the secretary pursuant to this article for the
20 license sought and evidence of the successful completion of an approved
21 course of study in nail specialty, waxing, natural hair ~~[styling]~~ care
22 and braiding, esthetics or cosmetology in a school duly licensed pursu-
23 ant to the education law.

24 c. Any applicant for a license to practice nail specialty, waxing,
25 natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology may
26 submit satisfactory evidence of licensure to practice an equivalent
27 occupation issued by any other state, territory, protectorate or depend-
28 ency of the United States or any other country in lieu of the evidence
29 of schooling and examination required by this subdivision, provided that
30 such license was granted in compliance with standards which were, in the
31 judgment of the secretary, not lower than those of this state and
32 provided that such state, territory, protectorate, dependency, or coun-
33 try extends similar reciprocity to the licensees of this state, or the
34 applicant practiced an equivalent occupation in such state, territory,
35 protectorate, dependency or country for a minimum of five years, or the
36 applicant is a member of the household of a member of the armed forces
37 of the United States, national guard or reserves and was a member of
38 such household before such member relocated to the state.

39 d. Notwithstanding the educational requirements of this section and
40 the testing requirements of this section, an applicant who otherwise has
41 met the licensing requirements of this article for a nail specialist,
42 waxer, natural hair ~~[stylist]~~ care and braiding specialist, esthetician
43 or cosmetologist who shall provide satisfactory evidence ~~[he or she has]~~
44 they have been actively and continuously engaged in the practice of nail
45 specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics
46 or cosmetology for at least one year prior to the effective date of this
47 article, may be issued a license for nail specialty, waxing, natural
48 hair ~~[styling]~~ care and braiding, esthetics or cosmetology pursuant to
49 this article. Notwithstanding the educational and testing requirements
50 of this section, a person licensed to practice barbering under article
51 twenty-eight of this chapter who otherwise has met the licensing
52 requirements of this article may apply for a temporary natural hair care
53 and braiding license in order to study and take the natural hair care
54 and braiding written examination. Upon passing, such licensed barber
55 shall be issued a license to practice natural ~~[hairstyling]~~ hair care
56 and braiding. Other than applicants licensed under article twenty-eight

1 of this chapter, those persons who apply after a twelve month period
2 from the effective date of this article will be required to provide
3 evidence of training and to take the examination or examinations as
4 required for other licenses pursuant to this article.

5 e. Upon acceptance by the secretary of a proper application for an
6 operator's license to practice nail [~~speciality~~] specialty, waxing,
7 natural hair [~~styling~~] care and braiding, esthetics or cosmetology, the
8 secretary may issue a temporary operator's license which shall expire
9 six months from issuance. Upon good cause shown, the secretary may renew
10 a temporary operator's license for one additional six-month period upon
11 filing the appropriate application and fee.

12 3. Appearance enhancement business license. a. Any person, eighteen
13 years of age or older, or any firm, limited liability company, partner-
14 ship or corporation having at least one member eighteen years of age or
15 older may apply to the secretary for an appearance enhancement business
16 license.

17 b. Each such application for an appearance enhancement business
18 license shall be accompanied by evidence of a bond or liability insur-
19 ance.

20 4. a. Notwithstanding any provision contained in this article to the
21 contrary, if any person, eligible for any license pursuant to this arti-
22 cle, should be called to active military service at or during the time
23 application for any license is required to be filed and license fee
24 paid, pursuant to the provisions of this article, the period within
25 which said application may be filed and license fee may be paid, is
26 extended on behalf of such person, until three months after the termi-
27 nation of said military service.

28 b. In the case of persons who are called to active military service
29 and will be discharged from active military service, the period of two
30 years specified in paragraph d of subdivision two of this section need
31 not be continuous. The length of time such person was engaged in the
32 practice of nail specialty, waxing, natural hair [~~styling~~] care and
33 braiding, esthetics or cosmetology before entering active military
34 service may be added to any period of time during which such person was
35 or is engaged in the practice of nail specialty, waxing, natural hair
36 [~~styling~~] care and braiding, esthetics or cosmetology after the termi-
37 nation of active military service.

38 § 7. The general business law is amended by adding a new section
39 406-a to read as follows:

40 § 406-a. Natural hair care and braiding certification program; licens-
41 ing. 1. The natural hair care and braiding three hundred hour curric-
42 ulum certification program and the apprentice one hundred hour curric-
43 ulum program shall be made available through the New York state board of
44 education, approved institutions and vocational programs, board of coop-
45 erative educational services, SUNY educational opportunity centers, and
46 private natural hair care, styling and braiding institutions and
47 colleges.

48 2. a. The secretary shall consult with the division of licensing, the
49 board of education and the advisory committee established under this
50 article to implement the natural hair care and braiding curriculum.

51 b. Such curriculum for braiding, locking, natural hairstyling,
52 textured hair styling and weaving for all ranges of hair types and
53 textures, including curls, coils, tight-coils, Afro-coils, waves and
54 straight hair, shall include, but not be limited to, the following:

55 (i) hair care products; through consultations, hair and scalp analysis
56 and hair texture assessments; the provision of clean botanical beauty

products, including, but not limited to clarifying and moisturizing shampoos, leave-in conditioners, steam hydration conditioning, scalp treatments, wellness practices, hydration and protein strengthening treatments, clays, masks, essential oils, herbal and botanical rinses, and topical agents such as gels and gelee, hairspray, foams, mousse, molding muds, moisturizers, oils and pomades;

(ii) hair care tools: used in the arranging, dressing, twisting, coiling, wrapping, weaving, extending, locking, palm rolling or braiding of hair or beards by either hand or mechanical equipment, including, but not limited to, clips, combs, brushes, crochet needles, latch-hook tools, interlocking tools, sewing blunt-tipped and curved needles, beading pliers, curlers, rods, rollers, hairpins, scissors, thread; and

(iii) hair care techniques: including, but not limited to:

(1) braiding and braid extension techniques which shall include, but are not limited to, individual box braids, knotless or feed-in braids, boho braids, cornrows, stitch cornrows, casamas, plaits, Bantu knots, or Senegalese twists with or without added human hair, plant-based hair or synthetic fibers;

(2) textured hair styling which shall include, but not be limited to, arranging, dressing, curl and coil defining textured hairstyles, enhancing natural curls-spiral technique, preparation for braid styling and natural hair; comb-coiling, finger coiling, double strand twisting, flat-twisting or the use of curlers, rods, rollers or hairpins, blow-drying and diffusing techniques, thermal curling and flat ironing natural hair, preventing heat damage using mechanical and electrical equipment, including the foundational preparation of the hair through wellness practices in order to preserve the health of the hair;

(3) loc grooming techniques which shall include, but not be limited to, comb coiling, palm rolling, starter locs, coiling, twisting, braiding including, but not limited to interlocking and wrapping the hair, loc extension, crochet locking, and micro-locking using human hair, plant based hair or synthetic fibers, and the foundational preparation of the hair through wellness practices in order to preserve the health of the hair; and

(4) weaving techniques which shall include, but not be limited to, sewing wefts or bundles of hair onto braided cornrows, Afro-twist hair extensions, traditional and mixed texture, sew-in-weaves, and crochet weaving.

§ 8. Subdivision 1 of section 407 of the general business law, as amended by chapter 255 of the laws of 1999, is amended to read as follows:

1. The examinations for the license to practice natural hair ~~[styling]~~ care and braiding, esthetics, nail specialty and cosmetology shall be practical and written. The examinations for the license to practice waxing shall be limited to a written examination only. The secretary shall determine reasonable standards of performance for each license and shall evaluate the prospective applicants and applicants on the basis of such standards. The objectives of the examinations shall be to ~~[insure]~~ ensure that prospective applicants and applicants have sufficient basic skills to safeguard the health and safety of the public and to insure that prospective applicants and applicants have attained adequate levels of skill to competently engage in the activities authorized by the license.

§ 9. Section 408 of the general business law is amended by adding a new subdivision 12 to read as follows:

1 12. Any current natural hair styling licensee who processes a renewal
2 after the effective date of this subdivision shall receive the updated
3 natural hair care and braiding license pursuant to this article.

4 § 10. The general business law is amended by adding two new sections
5 408-c and 408-d to read as follows:

6 § 408-c. Natural hair care and braiding apprentice. 1. A natural hair
7 care and braiding apprentice shall be an individual seventeen years of
8 age or older who seeks hands-on training that furthers their knowledge
9 and experience to enter the practice of natural hair care and braiding.
10 Such person shall be pursuing in good faith a one-year hands-on paid
11 work study apprenticeship program in the practice of natural hair care
12 and braiding under the tutelage, supervision, and direction of a senior
13 natural hair care and braiding specialist as defined by section four
14 hundred eight-d of this article. A business appearance enhancement
15 licensed salon shall register with the division of licensing services to
16 participate in such apprenticeship program. Such business appearance
17 enhancement salon shall hire such apprentice in a full or part time
18 capacity for a minimum of twenty hours to a maximum of forty hours per
19 week to participate in such apprenticeship program. The secretary shall
20 promulgate rules and regulations regarding salons and salon supervisors,
21 for tutelage, guidelines and requirements of natural hair care and
22 braiding instructors and textured hairstylist instructors. The advisory
23 committee established under this article shall advise the secretary and
24 division of licensing services on such rules and regulations pertaining
25 to curriculum and testing requirements.

26 2. a. An apprentice shall register with the division of licensing
27 services for a one-year natural hair care and braiding apprentice
28 license. Upon application, the participating appearance enhancement
29 business salon where such training shall occur shall be listed on the
30 department's website. Such license shall be renewable for an additional
31 one year, if necessary to complete the required mandatory educational
32 courses.

33 b. Each apprentice license issued as provided in this section shall be
34 posted in a conspicuous place where such apprentice is actually engaged
35 in the practice of natural hair care and braiding as an apprentice.

36 3. A mandatory one hundred hour online, in-person or hybrid course of
37 study on theory and styling preparation shall be required in conjunction
38 with this apprenticeship program from an accredited school approved by
39 the New York state division of licensing services, and shall include,
40 but not be limited to, the areas of public health and safety, science
41 and sanitary practices, alopecia and scalp disorders, and ergonomics for
42 overall health and safety. Such course of study shall follow the state
43 curriculum requirements pursuant to 19 NYCRR 162.3(a)(1) - (7) in addi-
44 tion to a twenty-hour practical examination preparation course on the
45 theory of hair braiding, locking, weaving and styling. Additionally, a
46 natural hair care and braid styling course in the theory and proper
47 procedures, including, but not limited to, braiding, twisting, locking
48 natural hairstyling, textured hair styling and weaving techniques with
49 demonstrations and hands-on training shall be required. Such hands-on
50 in-salon training shall be provided during the one-year paid apprentice-
51 ship program and shall include, but not be limited to, a structured
52 guided outline derived from the two hundred twenty-hour hair braiding,
53 locking, weaving and styling curriculum pursuant to 19 NYCRR
54 162.3(a)(8). Mandatory quarterly progress completion reports shall be
55 required and provided by the department and the department of education,
56 as applicable.

1 4. Upon completion of the requirements of this section, the apprentice
2 shall be eligible to apply to take a New York state natural hair care
3 and braiding practical examination. Upon passing such New York state
4 practical examination, such apprentice shall receive a natural hair care
5 and braiding license.

6 § 408-d. Senior natural hair care and braiding specialist. 1. A
7 senior natural hair care and braiding specialist shall be a salon super-
8 visor that oversees the apprenticeship program and shall be a New York
9 state licensed natural hairstylist, or cosmetologist with textured hair
10 expertise with at least five years of experience and demonstrates
11 advanced expertise in the care, styling and maintenance of all natural
12 hair types and textures.

13 2. Such specialist shall register with the state in the apprenticeship
14 program as a salon instructor, shall take a supervisor training class
15 for the standard of education for the apprenticeship program, and shall
16 be employed by a licensed appearance enhancement business registered
17 with the apprenticeship program in the state of New York. The advisory
18 committee established under this article shall advise the secretary and
19 division of licensing services on the education of such rules and regu-
20 lations pertaining to the senior specialist and apprenticeship program.

21 § 11. Subdivision 1 of section 409 of the general business law, as
22 amended by section 2 of part Y of chapter 60 of the laws of 2011, is
23 amended to read as follows:

24 1. The non-refundable fee for an application for a license to engage
25 in the practice of nail specialty, waxing, natural hair [~~styling~~] care
26 and braiding, esthetics or cosmetology, shall be forty dollars initially
27 and for each renewal thereof the fee shall be forty dollars; the fee for
28 a temporary license and each renewal shall be ten dollars.

29 § 12. Paragraph a of subdivision 2 of section 410 of the general busi-
30 ness law, as amended by chapter 80 of the laws of 2015, is amended to
31 read as follows:

32 a. The secretary may issue an order directing the cessation of any
33 activity related to nail specialty, waxing, natural hair [~~styling~~] care
34 and braiding, esthetics or cosmetology for which a license is required
35 by this article upon a determination that a person, partnership, limited
36 liability company or business corporation, engaging in the business or
37 occupation of, or holding [~~himself, herself~~] themselves or itself out as
38 or acted, temporarily or otherwise, as a nail specialist, natural hair
39 [~~stylist~~] care and braiding specialist, esthetician or cosmetologist
40 within this state without a valid license being in effect. The secretary
41 shall, before making such determination and order, afford such person,
42 partnership, limited liability company or business corporation an oppor-
43 tunity to be heard in person or by counsel in reference thereto in an
44 adjudicatory proceeding held pursuant to section four hundred eleven of
45 this article as applicable.

46 § 13. Subdivision 1 of section 412 of the general business law, as
47 amended by chapter 80 of the laws of 2015, is amended to read as
48 follows:

49 1. The practice of nail specialty, waxing, natural hair [~~styling~~] care
50 and braiding, esthetics or cosmetology without a license or while under
51 suspension or revocation, or in violation of an order directing the
52 cessation of unlicensed activity issued by the secretary pursuant to
53 section four hundred ten or four hundred eleven of this article, is a
54 violation and is subject to a civil penalty of up to five hundred
55 dollars for the first violation; one thousand dollars for a second such

1 violation; and two thousand five hundred dollars for a third violation
2 and any subsequent violation.
3 § 14. This act shall take effect on the sixtieth day after it shall
4 have become a law.